

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jeffrey Mulinelli (S)	Team: Squad #1	CCRB Case #: 201506920	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Saturday, 08/08/2015 11:40 PM, Sunday, 08/09/2015	Location of Incident: § 87(2)(b)	Precinct: 121	18 Mo. SOL 2/8/2017	EO SOL 2/8/2017	
Date/Time CV Reported Sun, 08/09/2015 11:55 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 08/17/2015 11:15 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Jose Tabora	17232	943856	121 PCT
2. An officer			
3. POM Genaro Barreiro	00308	950050	121 PCT
4. SGT Joseph Delsante	4567	941645	121 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Gareth Echevarria	00542	950366	121 PCT
2. POM Anthony Ruggiero	07821	953348	121 PCT
3. POM Michael Compton	03021	950224	121 PCT
4. POM Ricky Alexander	12750	943996	121 PCT
5. SSA John Todaro	05234	903307	121 PCT
6. SGT Dmitry Brushnivsky	01417	936251	121 PCT
7. POM Jeffrey Maira	16359	944113	121 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Genaro Barreiro	Abuse: On August 8, 2015, PO Genaro Barreiro stopped § 87(2)(b)	
B.POM Jose Tabora	Abuse: On August 8, 2015, PO Jose Tabora stopped § 87(2)(b)	
C.POM Genaro Barreiro	Abuse: On August 8, 2015, PO Genaro Barreiro stopped § 87(2)(b)	
D.POM Jose Tabora	Abuse: On August 8, 2015, PO Jose Tabora stopped § 87(2)(b)	
E.POM Genaro Barreiro	Force: On August 8, 2015, PO Genaro Barreiro used physical force against § 87(2)(b)	

Officer(s)	Allegation	Investigator Recommendation
F.POM Jose Tabora	Force: On August 8, 2015, PO Jose Tabora used physical force against § 87(2)(b)	
G.POM Genaro Barreiro	Force: On August 8, 2015, PO Genaro Barreiro used physical force against § 87(2)(b)	
H.POM Jose Tabora	Force: On August 8, 2015, PO Jose Tabora used physical force against § 87(2)(b)	
I. An officer	Force: On August 8, 2015, an officer used physical force against § 87(2)(b)	
J.POM Genaro Barreiro	Discourtesy: On August 8, 2015, PO Genaro Barreiro spoke discourteously to § 87(2)(b)	
K. An officer	Abuse: On August 8, 2015, an officer threatened § 87(2)(b) with the use of force.	
L. An officer	Force: On August 8, 2015, an officer used physical force against § 87(2)(b)	
M.POM Genaro Barreiro	Force: On August 8, 2015, PO Genaro Barreiro used physical force against § 87(2)(b)	
N.POM Jose Tabora	Force: On August 8, 2015, PO Jose Tabora used physical force against § 87(2)(b)	
O. An officer	Force: On August 8, 2015, an officer struck § 87(2)(b)'s head against a wall.	
P.POM Jose Tabora	Force: On August 8, 2015, PO Jose Tabora struck § 87(2)(b)'s head against a vehicle.	
Q.POM Jose Tabora	Force: On August 8, 2015, PO Jose Tabora used a chokehold against § 87(2)(b)	
R.POM Jose Tabora	Force: On August 8, 2015, PO Jose Tabora restricted § 87(2)(b)'s breathing.	
S.POM Jose Tabora	Discourtesy: On August 8, 2015, PO Jose Tabora spoke discourteously to § 87(2)(b)	
T.POM Genaro Barreiro	Abuse: On August 9, 2015, PO Genaro Barreiro entered § 87(2)(b) in Staten Island.	
U.SGT Joseph Delsante	Abuse: On August 9, 2015, Sgt. Joseph Delsante entered § 87(2)(b) in Staten Island.	

Case Summary

On August 8, 2015, at approximately 11:40 p.m., PO Genaro Barreiro and PO Jose Tabora, of the 121st Precinct Anti-Crime Team, were patrolling in the vicinity of § 87(2)(b) when they observed § 87(2)(b) and § 87(2)(b) who both officers knew to have active warrants. PO Barreiro and PO Tabora stopped § 87(2)(b) and § 87(2)(b) and spoke with them briefly before § 87(2)(b) fled on foot toward the rear of § 87(2)(b) the residence of § 87(2)(b) (**Allegations A through D**). § 87(2)(b) ran up a small set of steps which led from the backyard of § 87(2)(b) to its rear door. § 87(2)(b) was on those steps when PO Barreiro and PO Tabora allegedly pushed him onto the steps (**Allegations E and F**). PO Barreiro and PO Tabora allegedly placed their knees on § 87(2)(b) neck as § 87(2)(b) lay on the steps and both allegedly punched § 87(2)(b) in his stomach and ribs during the struggle (**Allegations G and H**). An officer allegedly pushed § 87(2)(b) face onto the paved walkway, causing his face to bleed (**Allegation I**).

After § 87(2)(b) and § 87(2)(b) were handcuffed, § 87(2)(b) told the officers that he had recorded video of the incident. PO Barreiro allegedly responded that he did not give a shit (**Allegation J**). Officers led § 87(2)(b) and § 87(2)(b) away from the crowd. § 87(2)(b) observed that an officer punched § 87(2)(b) as he was in handcuffs near an RMP (**Allegation K**). An officer allegedly told § 87(2)(b) that there would be retribution for his running from the officers (**Allegation L**).

As PO Barreiro led § 87(2)(b) toward an RMP, § 87(2)(b) attempted to grab § 87(2)(b)'s cell phone from § 87(2)(b)'s pocket. PO Barreiro allegedly pushed § 87(2)(b) to the ground as she did this (**Allegation M**). § 87(2)(b) dropped the phone from her pocket seconds later, and § 87(2)(b) retrieved it and ran into § 87(2)(b).

About five minutes after § 87(2)(b) entered her house, her mother, § 87(2)(b) woke up and exited to the back yard. § 87(2)(b) followed § 87(2)(b) and § 87(2)(b) were both standing on the steps which lead from § 87(2)(b) to the back yard of § 87(2)(b) when PO Barreiro told other officers to grab § 87(2)(b). As several officers descended on § 87(2)(b) she observed PO Tabora push § 87(2)(b) to the ground (**Allegation N**). An officer then grabbed § 87(2)(b) and pushed her face against a concrete wall next to the stairs (**Allegation O**). § 87(2)(b) was then handcuffed by additional uniformed officers.

PO Tabora walked § 87(2)(b) across the street and placed her against her own car. PO Tabora allegedly pushed § 87(2)(b)'s head against the driver's window and used a chokehold against her by placing one hand on her throat. This action reportedly restricted § 87(2)(b)'s breathing (**Allegations P, Q, and R**). After PO Tabora executed the alleged chokehold, § 87(2)(b) heard screaming. When she turned her head to see what was going on, PO Tabora allegedly told her to shut the fuck up and keep her head straight (**Allegation S**). All of the officers left minutes later after arresting § 87(2)(b) and § 87(2)(b).

On August 9, 2015, at approximately 12:45 a.m., PO Barreiro returned to § 87(2)(b) with Sgt. Joseph Delsante following a radio transmission of a 911 call placed by § 87(2)(b). § 87(2)(b) had alleged that she had been assaulted by an officer. When they arrived, § 87(2)(b) invited the officers into her kitchen through the back door. § 87(2)(b) explained to the officers what had happened earlier. Following this explanation, the officers stepped outside and spoke in a huddle. PO Barreiro and Sgt. Delsante then entered § 87(2)(b).

§ 87(2)(b) s kitchen again and instructed her to stand up because she was going to be arrested
(Allegations T and U).

§ 87(2)(b) was ultimately arrested for § 87(2)(b) In addition to being returned on their warrants,
§ 87(2)(b) was charged with § 87(2)(b)
and § 87(2)(b) with § 87(2)(b) § 87(2)(b) was charged with § 87(2)(b)
§ 87(2)(b)

§ 87(2)(g)

Of the six civilians interviewed for this case, none agreed to come to the CCRB. The CCRB's Field Team was sent to Staten Island on multiple occasions to conduct interviews and retrieve video footage. § 87(2)(b) the seventh civilian involved, did not cooperate with the investigation and did not provide a statement. In addition, ten officers were interviewed during the course of the investigation.

§ 87(2)(g)

Mediation, Civil and Criminal Histories

This case was ineligible for mediation due to injuries sustained by § 87(2)(b) as well as the arrests of § 87(2)(b) and § 87(2)(b)

and § 87(2)(b) each filed a Notice of Claim through their attorney. A receipt date was not indicated on these records. The statements contained within were prepared by their attorney and provided only a brief outline of the incident [01 Board Review].

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

Civilian and Officer CCRB Histories

This is the first CCRB complaint involving § 87(2)(b)

or § 87(2)(b) [03 Board Review].

This is the seventh CCRB complaint filed against PO Barreiro during his four year tenure. He has been the subject of physical force allegations in four other cases. In cases 201303874 and 201401012, the allegations were closed as unsubstantiated. The physical force allegation against him in case 201501137 was closed as exonerated. Case 201509387 was closed as complainant uncooperative.

This is the seventh CCRB complaint filed against PO Tabora during his nine year tenure. He has not previously been the subject of a physical force allegation.

This is the fifth CCRB case filed against PO Maira during his nine year tenure. He has been the subject of force allegations in three prior cases. The force allegations against him were closed as exonerated in all three cases. PO Maira has not previously been the subject of a chokehold allegation.

This is the second CCRB complaint against Sgt. Delsante. He has not previously been the subject of an entry allegation.

Potential Issues

§ 87(2)(b) did not provide a statement to the investigation.

Findings and Recommendations

Allegations Not Pleaded

Abuse of Authority: Property Damage.

§ 87(2)(b) stated that the stairway railing on the set of steps that § 87(2)(b) PO Barreiro, and PO Tabora struggled on was broken during the fracas. She did not allege that either officer intentionally damaged the railing [04 Board Review]. § 87(2)(g)

Abuse of Authority: Threat of Arrest.

§ 87(2)(b) stated that he, § 87(2)(b) and PO Barreiro spoke about video footage during the second portion of the incident. According to § 87(2)(b) PO Barreiro told § 87(2)(b) that § 87(2)(b) would be arrested if he did not show the video. § 87(2)(b) corroborated this statement but added that PO Barreiro specified that § 87(2)(b) had committed OGA. Neither § 87(2)(b) nor § 87(2)(b) wished to come to the CCRB, and they were mailed verification forms. Neither returned the form, and thusly did not provide a sworn statement [05-06 Board Review]. § 87(2)(g)

Allegation A – Abuse of Authority: On August 8, 2015, PO Genaro Barreiro stopped § 87(2)(b)

Allegation B – Abuse of Authority: On August 8, 2015, PO Jose Tabora stopped § 87(2)(b)

Allegation C – Abuse of Authority: On August 8, 2015, PO Genaro Barreiro stopped § 87(2)(b)

Allegation D – Abuse of Authority: On August 8, 2015, PO Jose Tabora stopped § 87(2)(b)

It is undisputed that § 87(2)(b) and § 87(2)(b) had active warrants at the time of the incident. It is also undisputed that § 87(2)(b) and § 87(2)(b) had an interaction with PO Barreiro and PO Tabora in the weeks prior to August 8, 2015, and that the officers informed § 87(2)(b) and § 87(2)(b) of their active warrants and instructed them to address said warrants. § 87(2)(b) admitted that neither she nor § 87(2)(b) addressed their warrants prior to August 8, 2015. The civilians and officers consistently testified that § 87(2)(b) and § 87(2)(b) were outside of their vehicle when they were stopped, and that all parties recognized each other from their previous encounter [07-09 Board Review].

A summary of warrants issued for § 87(2)(b) and § 87(2)(b) revealed that both had active warrants at the time of the incident. These warrants were cancelled on § 87(2)(b) [10 Board Review].

As noted above, it is undisputed that § 87(2)(b) and § 87(2)(b) interacted with the officers previously, and that both civilians had active warrants. § 87(2)(g)

Allegation E – Force: On August 8, 2015, PO Genaro Barreiro used physical force against

§ 87(2)(b)

Allegation F – Force: On August 8, 2015, PO Jose Tabora used physical force against

§ 87(2)(b)

It is undisputed that § 87(2)(b) fled from PO Barreiro and PO Tabora, and that he arrived at the rear door of § 87(2)(b) before the officers caught up to him. § 87(2)(b) and § 87(2)(b) all of whom were present for the initial struggle between § 87(2)(b) and PO Barreiro and PO Tabora, unanimously testified that the officers forcefully took § 87(2)(b) down onto the stairs which led from the back yard to the rear door of § 87(2)(b). Specifically, § 87(2)(b) stated that the officers “slammed” § 87(2)(b) to the ground and later pushed his face against the ground, causing it to bleed, while § 87(2)(b) alleged that the officers tackled § 87(2)(b). § 87(2)(b) revealed that § 87(2)(b) resisted arrest by squirming his body. § 87(2)(b) and § 87(2)(b) made no statements regarding any resistance offered by § 87(2)(b) [04-05, 07-09 Board Review].

§ 87(2)(b) did not provide a statement to the investigation. § 87(2)(b) and § 87(2)(b) were not present for this portion of the incident [see IAs, 06, 11 Board Review].

§ 87(2)(b) arrest photo shows that he had a band-aid over his left eyebrow [13 Board Review].

PO Barreiro and PO Tabora were the only officers present at the time § 87(2)(b) was allegedly pushed onto the stairs. Both officers testified that § 87(2)(b) fled and attempted to open the back door of § 87(2)(b). PO Barreiro and PO Tabora were consistent in testifying that § 87(2)(b) resisted by holding the door handle and stiffening his body as they attempted to pull him back from the door. PO Barreiro testified that he and PO Tabora instructed § 87(2)(b) to place his hands behind his back throughout the struggle. PO Tabora stated that he and PO Barreiro pulled § 87(2)(b) arms behind his back and used no other force to restrain him. PO Barreiro denied that he or PO Tabora pushed § 87(2)(b) to the ground but acknowledged that § 87(2)(b) was “placed” on the stairs as a result of the momentum of the struggle. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

Video provided by § 87(2)(b) did not clearly reveal how § 87(2)(b) was taken to the ground, but it did capture that he came to be on the stairs while struggling with PO Barreiro and PO Tabora. Due to poor lighting conditions, the degree of force used to place § 87(2)(b) on the stairs remains unclear, as does his position on the stairs. § 87(2)(b) and several other civilians are heard shouting on the video, making such statements as, “Why are you touching him?” “Get off of him,” and “Officer, I’m on private property.” There are several points at which the civilians are arguing amongst themselves. § 87(2)(g)

§ 87(2)(b)



2016-02-02_18-03-20.mp4

§ 87(2)(g)

Allegation G – Force: On August 8, 2015, PO Genaro Barreiro used physical force against

§ 87(2)(b)

Allegation H – Force: On August 8, 2015, PO Jose Tabora used physical force against

§ 87(2)(b)

Allegation I – Force: On August 8, 2015, an officer used physical force against

§ 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) alleged that PO Barreiro and PO Tabora punched § 87(2)(b) in his stomach and ribs, and that one of the two officers pushed § 87(2)(b) face into concrete, causing it to bleed. § 87(2)(b) also alleged that an officer placed his knee on § 87(2)(b) neck, but she did not know which officer did this because several backup units had arrived by then. § 87(2)(b) reported that only PO Barreiro placed his knee on § 87(2)(b) neck, and she made no mention of an officer punching § 87(2)(b) or pushing his face against concrete. § 87(2)(b) testified that both PO Barreiro and PO Tabora placed their knees on § 87(2)(b) neck as he lay on the stairs, but she did not allege that any officer punched § 87(2)(b) or that an officer pushed his face into concrete. § 87(2)(b) did not corroborate any of the physical force allegations mentioned above, though he acknowledged that § 87(2)(b) resisted the officers by squirming [04-05, 7, 12 Board Review].

As mentioned above, § 87(2)(b) and § 87(2)(b) were not present for this portion of the incident [06, 11 Board Review].

§ 87(2)(b) did not provide a statement to the investigation, but his arrest photo featured a small Band-Aid above his left eyebrow. The arrest photo showed no injuries of any kind to § 87(2)(b) neck [13 Board Review].

PO Barreiro and PO Tabora both testified that § 87(2)(b) resisted arrest by stiffening his body and holding the door handle. PO Barreiro and PO Tabora denied placing their knees on § 87(2)(b) neck, punching § 87(2)(b) or pushing § 87(2)(b) face into the ground or concrete. Both PO Barreiro and PO Tabora stated that they were the only officers present during the struggle with § 87(2)(b) [08-09 Board Review].

Video evidence submitted by § 87(2)(b) did not clearly depict whether § 87(2)(b) was punched, if the officers placed their knees on § 87(2)(b) neck, or if an officer pushed § 87(2)(b) face into concrete. The video was dark, and the § 87(2)(b) sisters blocked the view of the struggle at several points. In the video, § 87(2)(b) makes no complaints other than stating that he was on private property and asking that someone retrieve his glasses. As § 87(2)(b) and § 87(2)(b) are led away by officers, a female civilian asks § 87(2)(b) if he recorded the incident on video. He replies that he did but makes no allegations against the officers. § 87(2)(b) and another female civilian agreed that § 87(2)(b) and § 87(2)(b) were acting wildly during the struggle between the officers and § 87(2)(b).

No civilian is heard complaining of force used by officers. Rather, their complaints are regarding the behavior exhibited by § 87(2)(b) and § 87(2)(b) and the fact that the officers were on private property.



2016-02-02_17-57-25.mp4

§ 87(2)(b) Command Log entry, which was prepared by PO Tabora, revealed that § 87(2)(b) had a small cut above his left eyebrow. The entry also indicated that EMS arrived, but § 87(2)(b) refused medical attention [28 Board Review]. A request for a Medical Treatment of Prisoner Report produced negative results.

§ 87(2)(g)

[REDACTED]

Allegation J – Discourtesy: On August 8, 2015, PO Genaro Barreiro spoke discourteously to

§ 87(2)(b)

§ 87(2)(b) stated that § 87(2)(b) informed the officers that he had recorded video of the physical struggle described in the allegations above. She alleged that PO Barreiro responded to § 87(2)(b) by stating that he did not give a shit [04 Board Review].

Neither § 87(2)(b) nor § 87(2)(b) alleged that PO Barreiro spoke discourteously during the incident. § 87(2)(b) made no mention of the alleged discourtesy. Neither § 87(2)(b) nor § 87(2)(b) was present at the time the discourteous language was allegedly used by PO Barreiro [05-07, 11-12 Board Review].

PO Barreiro was aware that a civilian had recorded video but he denied saying that he did not give a shit. PO Tabora denied hearing PO Barreiro him say this [08-09 Board Review].

Video provided by § 87(2)(b) featured no discourteous language used by PO Barreiro, whose voice is easily singled out as he is the only individual present with a Spanish accent.



2016-02-02_18-49-13.mp4

§ 87(2)(g)

[REDACTED]

Allegation K – Abuse of Authority: On August 8, 2015, an officer threatened § 87(2)(b) with the use of force.

Allegation L – Force: On August 8, 2015, an officer used physical force against § 87(2)(b)

§ 87(2)(b) testified that she and § 87(2)(b) were led away from § 87(2)(b) after being handcuffed. According to § 87(2)(b) § 87(2)(b) was brought to an RMP, where an officer, who she could not describe, told § 87(2)(b) that there would be retribution for his running from the officers. § 87(2)(b) believed that an officer punched § 87(2)(b) in the stomach, though she waffled as to whether she actually observed this. Regarding what she actually witnessed, § 87(2)(b) was unable to specify what the officers were doing to § 87(2)(b) aside from “shaking him” and “roughing him up” [07 Board Review].

§ 87(2)(b) testified that she followed § 87(2)(b) as § 87(2)(b) was led away in handcuffs. § 87(2)(g)

§ 87(2)(b) made no allegations concerning a threat of force or any physical force used against § 87(2)(b) at that time [04 Board Review].

Neither § 87(2)(b) nor § 87(2)(b) corroborated this allegation, though they both testified that they ran inside § 87(2)(b) § 87(2)(g)

§ 87(2)(b) was uncooperative and did not provide a statement to the investigation [see IAs]. As noted above, § 87(2)(b) Command Log entry, which was prepared by PO Tabora, noted only a small cut above his left eye. It made no mention of any other injuries and indicated that § 87(2)(b) refused medical attention from EMS at the stationhouse [28 Board review].

PO Barreiro denied hearing any officer tell § 87(2)(b) that there would be retribution for his running from the officers. He denied punching § 87(2)(b) or seeing any officer do so at any time [08 Board Review].

PO Tabora acknowledged that he brought § 87(2)(b) to his RMP and placed him inside. He denied telling § 87(2)(b) that there would be retribution because he had run from the officers. PO Tabora also denied punching § 87(2)(b) or see any officer do so. PO Tabora did not hear any civilian complain that an officer had threatened or punched § 87(2)(b) [09 Board Review].

Video provided by § 87(2)(b) revealed that § 87(2)(b) was led to an RMP by PO Tabora. § 87(2)(b) was already in front of PO Barreiro’s RMP, a silver Ford Fusion, at that time, and PO Tabora and PO Barreiro appear to be the only officers on scene. The camera pans away from § 87(2)(b) at times, but the video captures PO Tabora with § 87(2)(b) as § 87(2)(b) is leaned forward against the passenger’s side of PO Barreiro’s RMP. There is no evidence of any struggle, and no complaints are heard from the civilians, including § 87(2)(b) in regards to these allegations. The video ends as backup officers arrive and the other civilians flee into § 87(2)(b)



2016-02-02_19-25-37.mp4

§ 87(2)(g)
 [REDACTED]
 [REDACTED]
 [REDACTED]
 [REDACTED]
 [REDACTED]
 [REDACTED]

Allegation M – Force: On August 8, 2015, PO Genaro Barreiro used physical force against

§ 87(2)(b)
 § 87(2)(b) testified that § 87(2)(b) was being escorted by PO Barreiro to his RMP when § 87(2)(b) asked her to retrieve her cell phone, which was in the back pocket of § 87(2)(b)'s jeans. According to § 87(2)(b) she approached § 87(2)(b) and PO Barreiro pushed § 87(2)(b) by placing both of his hands on her shoulders, causing § 87(2)(b) to fall on her buttocks. § 87(2)(b) reported that she had been approximately four feet from § 87(2)(b) prior to the push, and that no officer had issued her any instructions regarding the phone. § 87(2)(b) ultimately grabbed § 87(2)(b)'s phone after § 87(2)(b) threw it to the ground [04 Board Review].

§ 87(2)(b) also reported that she asked § 87(2)(b) to take her phone, and that § 87(2)(b) ultimately retrieved it when she dropped it to the ground, but she made no mention of any officer pushing § 87(2)(b) § 87(2)(b) § 87(2)(g)
 [REDACTED] did not allege that any officer pushed § 87(2)(b)
 [REDACTED]'s statement included no descriptions of the interaction detailed above [05, 07, 12 Board Review].

As per their statements and video evidence, neither § 87(2)(b) nor § 87(2)(b) was present at this moment. § 87(2)(b) did not provide a statement to the investigation [06, 11 Board Review].

PO Barreiro testified that he was escorting § 87(2)(b) who was in handcuffs, when § 87(2)(b) told § 87(2)(b) to grab her cell phone. PO Barreiro explained to § 87(2)(b) that her cell phone was her property, and that she could not release it to anyone because she was under arrest. According to PO Barreiro, § 87(2)(b) then threw her phone into the street, and the phone was grabbed by § 87(2)(b) before PO Barreiro could bend down to reach it. PO Barreiro denied making physical contact with § 87(2)(b) because she quickly ran into § 87(2)(b) after retrieving the phone [08 Board Review].

PO Tabora did not remember any incident involving § 87(2)(b)'s attempted retrieval of § 87(2)(b)'s cell phone. He did not see PO Barreiro push § 87(2)(b) [09 Board Review].

Video taken by § 87(2)(b) captured § 87(2)(b) leaning over the hood of PO Barreiro's RMP and reaching toward § 87(2)(b) whose arm was being held by PO Barreiro. § 87(2)(b) leans completely over the RMP and appears to grab § 87(2)(b) PO Barreiro shouts, "Let go! Let go or you're going to get arrested too." PO Barreiro extends his left arm, with which he holds § 87(2)(b) ostensibly to create distance between the two females. § 87(2)(b)

§ 87(2)(b) remains in close proximity to PO Barreiro, who then pushes her on her upper torso with his free right hand. PO Barreiro retains his grip on § 87(2)(b) with his left hand as he does this. § 87(2)(b) takes one step back but does not fall. Seconds later, § 87(2)(b) approaches § 87(2)(b) who is still recording this video, and says, “He just threw me!” This video also showed that PO Barreiro and PO Tabora were the only officers present, and that PO Tabora and § 87(2)(b) were close behind § 87(2)(b) as this part of the incident unfolded.



2016-02-02_20-12-46.mp4

Patrol Guide procedure 203-11 requires that an officer use the minimum force necessary to restrain an individual [14 Board Review].

§ 87(2)(g)
[REDACTED]

Allegation N – Force: On August 8, 2015, PO Jose Tabora used physical force against § 87(2)(b)

§ 87(2)(b) testified that she was inside the house when § 87(2)(b) entered through the kitchen door and informed her that § 87(2)(b) had been arrested. § 87(2)(b) went back outside against § 87(2)(b)'s advice because § 87(2)(b)'s phone was in the street. According to § 87(2)(b) picked up § 87(2)(b)'s phone from the street, and seven officers then grabbed § 87(2)(b). This prompted § 87(2)(b) to exit her house.

§ 87(2)(b) reported that she exited her house and observed PO Tabora standing to her left on the walkway between the house and the steps leading to § 87(2)(b). § 87(2)(b) continued to the first step of the set which leads to § 87(2)(b) and asked another officer why her daughter was being arrested. § 87(2)(b) denied yelling or running at this moment. § 87(2)(b) was still on the first step when PO Tabora allegedly pushed her from behind by placing both of his hands on her upper back. § 87(2)(b) fell down the stairs and suffered lacerations and bruises above and below her right elbow. Another officer helped § 87(2)(b) stand up and allowed her to go back inside [11 Board Review].

§ 87(2)(b) § 87(2)(g)
[REDACTED] did not know the subject officer's name at the time of the call [25 Board Review].

§ 87(2)(b)'s medical records from the FDNY and primary care physician confirmed that she suffered abrasions to her right arm. Both reports contained the allegation that § 87(2)(b) had been pushed by an officer [see privileged medical documents].

§ 87(2)(b) testified that she already had § 87(2)(b)'s phone when she was inside the house, and that she followed § 87(2)(b) outside, where she observed seven RMPs and 100 to 200 officers. § 87(2)(b) stood on the third step from the top on the staircase which led to § 87(2)(b) and § 87(2)(b) stood at the top of the same staircase. § 87(2)(b) was not standing on the grass. When PO Barreiro told other officers to grab § 87(2)(b) several officers rushed toward § 87(2)(b). At that time, § 87(2)(b) observed from the corner of her eye § 87(2)(b) being thrown to the ground by PO Tabora. Although she did not see the push in detail, she believed that § 87(2)(b) was pushed hard by PO Tabora based on the fact that she fell down the stairs. § 87(2)(b) denied that § 87(2)(b) had interfered with any arrests or made physical contact with any officers prior to the push [04 Board Review].

§ 87(2)(b) stated that § 87(2)(b) was outside and standing between § 87(2)(b) and a Hispanic male officer when other officers noticed that § 87(2)(b) was outside. An officer pointed to § 87(2)(b) and told other officers to get her. § 87(2)(b) was still standing between § 87(2)(b) and the Hispanic male officer at that time, but she was not standing between them in order to prevent officers from getting to § 87(2)(b). Rather, § 87(2)(b) was asking what was going on when the Hispanic male officer threw her to the ground. § 87(2)(b) described that this officer intentionally threw § 87(2)(b) out of the way and that § 87(2)(b) did not slip on the grass. § 87(2)(b) also stated that § 87(2)(b) fell on the concrete walkway and injured her arm [05 Board Review].

§ 87(2)(b) testified that she was in the midst of being placed in a chokehold by PO Maira when she heard screaming. When § 87(2)(b) turned her head, she saw § 87(2)(b) lying on the ground and bleeding. § 87(2)(b) did not know how § 87(2)(b) came to be on the ground [07 Board Review].

§ 87(2)(b) reported that she was inside of § 87(2)(b) when she peeked through the blinds and observed § 87(2)(b) on the ground crying and holding her right elbow. She believed that an officer had pushed § 87(2)(b) but did not see how § 87(2)(b) came to be on the ground [12 Board Review].

§ 87(2)(b) was not present for this portion of the incident. He stated that § 87(2)(b) informed him via phone that § 87(2)(b) had been assaulted by an officer. When he arrived at § 87(2)(b) § 87(2)(b) observed a bleeding wound on § 87(2)(b)'s elbow [06 Board Review].

PO Tabora testified that § 87(2)(b) and § 87(2)(b) were handcuffed at the same time and that § 87(2)(b) came out of § 87(2)(b) and interfered with officers escorting § 87(2)(b) from the back yard. PO Tabora did not remember which officer handcuffed or escorted § 87(2)(b). PO Tabora did not remember if § 87(2)(b) made physical contact with that officer but described that § 87(2)(b) was between the officer and § 87(2)(b) and was also near the steps which lead to § 87(2)(b). PO Tabora reported that he was at his RMP, which was 15 to 20 feet from the steps, guarding § 87(2)(b) as § 87(2)(b) interfered as he described. PO Tabora did not know what happened after § 87(2)(b) got between the officers and § 87(2)(b) because § 87(2)(b) was drawing his attention by yelling from inside the RMP. PO Tabora did not remember seeing a physical struggle between § 87(2)(b) and officers. He did not know if she was removed from the officers' immediate vicinity. PO Tabora denied pushing or making any physical contact with § 87(2)(b). He did not see § 87(2)(b) fall down the stairs, observe any injuries to her, or learn that any officer had been pushed § 87(2)(b) while he was at the scene. Later, while at the

121st Precinct stationhouse, PO Barreiro brought § 87(2)(b) in, and she alleged that she had been pushed down the stairs by an officer. § 87(2)(b) did not specify which officer had pushed her [09 Board Review].

PO Barreiro testified that § 87(2)(b) exited her house after § 87(2)(b) ran inside. § 87(2)(b) asked what was going on, and PO Barreiro explained that § 87(2)(b) had a warrant for which she was being arrested. As they spoke, PO Barreiro was near his RMP, which was about a car length from the steps. § 87(2)(b) was walking toward PO Barreiro as they spoke.

When § 87(2)(b) exited the house, PO Barreiro instructed officers generally to arrest her. PO Barreiro did not remember which officers were in § 87(2)(b)'s vicinity at that time, but § 87(2)(b) interfered as they attempted to arrest § 87(2)(b). Specifically, PO Barreiro described that § 87(2)(b) ran toward the officers, reached between them and § 87(2)(b) and asked why § 87(2)(b) was being arrested. § 87(2)(b) was near the steps at that time. PO Barreiro approached § 87(2)(b) and stated that she fell on the sidewalk as he approached. According to PO Barreiro, § 87(2)(b) grabbed his shirt as she fell. PO Barreiro first addressed the officers dealing with § 87(2)(b) to make sure that they were alright. He did not know where PO Tabora was at that moment. When PO Barreiro turned back to § 87(2)(b) she got up and ran into § 87(2)(b). PO Barreiro did not observe any injuries to § 87(2)(b) and, based on the way she ran, which was up the hill as opposed to up the stairs, he assumed that § 87(2)(b) was uninjured.

PO Barreiro did not remember if § 87(2)(b) alleged that an officer had used force against her when he revisited the location to arrest her later that night. Neither § 87(2)(b) nor her daughters discussed any such use of force while they were in the same cell at the 121st Precinct stationhouse [08 Board Review].

Sgt. John Todaro, who was the supervisor of the 121st Precinct Anti-Crime Team, stated that he observed § 87(2)(b) screaming as she came out of the back yard of § 87(2)(b). Sgt. Todaro testified that he was seven to ten feet from § 87(2)(b) when she slipped on a grassy embankment to the left of the steps. There were several other officers at the scene at that time but Sgt. Todaro did not remember who was near § 87(2)(b) at the time she fell. Sgt. Todaro did not observe § 87(2)(b) interfere in any arrests before she fell. He denied that § 87(2)(b) was speaking with any officer prior to falling. Sgt. Todaro did not know where PO Barreiro and PO Tabora were at that moment. Sgt. Todaro helped § 87(2)(b) up, and she continued yelling and asking why her daughters were being arrested. Sgt. Todaro did not remember observing any injuries to § 87(2)(b) who walked back into her house. Sgt. Todaro did not see PO Tabora or any other officer push § 87(2)(b) at any point, and he did not remember hearing § 87(2)(b) or any other civilian make this allegation [15 Board Review].

PO Ricky Alexander, who was partnered with Sgt. Todaro, also testified that § 87(2)(b) was yelling as she ran out of the back yard. According to PO Alexander, § 87(2)(b) tripped and fell on the steps as unknown officers were approaching her. PO Alexander did not know if he saw PO Barreiro or PO Tabora at the scene. PO Alexander denied seeing PO Tabora or any other officer push § 87(2)(b). He did not hear § 87(2)(b) or any other civilian complain that an officer had pushed § 87(2)(b). PO Alexander did not observe any injuries to § 87(2)(b) and did not remember her complaining of any injuries [16 Board Review].

PO Anthony Ruggiero arrived as backup with his partner, PO Gareth Echevarria. PO Ruggiero first stated that he did not remember if he observed a female civilian on the ground during the incident, but during follow-up questioning he revealed that he observed a female civilian on the ground immediately after he arrived on scene. According to PO Ruggiero, she was already on the ground when he arrived. PO Ruggiero did not know how this female civilian came to be on the ground or if she made physical contact with officers prior to being on the ground [17 Board Review].

Sgt. Brushnivsky, PO Maira, and PO Echevarria, of the 121st Precinct, arrived in response to a 10-85 called by the Anti-Crime Team, denied seeing any female civilian pushed by an officer. However, when Sgt. Brushnivsky returned to the 121st Precinct stationhouse, he learned that a woman who had been interfering with the arrest of another was pushed to the ground by an officer. Sgt. Brushnivsky did not remember which officer he learned this from or which officer reportedly pushed the woman to the ground [18-20 Board Review].

The second video provided by § 87(2)(b) did not capture the force allegedly used against § 87(2)(b) as the video was recorded from inside the house. § 87(2)(g) The video begins with § 87(2)(b) at the front door, and § 87(2)(b)'s voice is heard shouting, "You don't know!" at the seven second mark. § 87(2)(b) does not appear to be inside the house. At the 30 second mark, the kitchen door is heard opening, and § 87(2)(b)'s voice is closer to the camera as she says, "Get in the house." The doors sounds as if it opens and closes, and § 87(2)(b) is no longer seen. § 87(2)(b) comments, "they're dumb," suggesting that both § 87(2)(b) and § 87(2)(b) exited. At the 45 second mark, § 87(2)(b) is heard screaming about something that happened to her mother. Seconds later, § 87(2)(b) suddenly becomes irate and says, "Move, move, move. My mom, nigga!" § 87(2)(g) § 87(2)(b) then shouts, "They just touched my mom, yo." § 87(2)(b) briefly summarizes the incident, stating that officers "beat up" § 87(2)(b). Finally, the video ends with § 87(2)(b) entering the house and § 87(2)(b) asking her if she is okay. § 87(2)(b) asks § 87(2)(b) "What did they do?" Others in the room tell § 87(2)(b) to call IAB. § 87(2)(b) is not seen or heard before the video ends.



2016-02-03_12-24-03.mp4

The third video provided by § 87(2)(b) captured no misconduct but features a verbal summary of the incident by § 87(2)(b). § 87(2)(b)'s only stated allegation during his summary was that § 87(2)(b) was pushed to the ground by an officer.



2016-02-03_12-31-31.mp4

The fourth video provided by § 87(2)(b) was shot in the dark outside of § 87(2)(b). This video covers the point at which officers returned to the location and spoke with § 87(2)(b) and § 87(2)(b). § 87(2)(b) can be heard stating that she was grabbed from behind and thrown by an officer.



2016-02-03_15-33-15.mp4

An additional excerpt from the fourth video features PO Barreiro speaking in the background. Although he does not specifically name § 87(2)(b) he describes a situation in which a woman, who he refers to as “the last one,” interfered in an arrest and was “pulled off” by a cop, at which point she fell to the floor. PO Barreiro then describes that that woman ran back into the house. § 87(2)(b) can be heard at the end saying, “That’s not what happened.”



2016-02-05_19-49-43.mp4

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

Allegation O – Force: On August 8, 2015, an officer struck § 87(2)(b) s head against a wall.

As noted above, § 87(2)(b) testified that an officer grabbed her after PO Barreiro instructed officers to arrest her. § 87(2)(b) was behind § 87(2)(b) at the top of the stairs as this unfolded. As an officer grabbed § 87(2)(b) that same officer pushed § 87(2)(b) s face against a concrete wall that bordered the stairs. § 87(2)(b) was unable to describe this officer other than to say that he was a uniformed white male. § 87(2)(b)

§ 87(2)(b) did not know the officer's name and was unable to provide any other descriptive details. § 87(2)(b) reported that she did not suffer any injuries to her face [04 Board Review].

§ 87(2)(b)'s arrest photo showed no injuries or redness to her face [23 Board Review].

§ 87(2)(b) § 87(2)(g) stated that § 87(2)(b) was pushed into a concrete wall at the bottom of the steps by officers. However, she did not see which officers did this [12 Board Review].

As discussed in allegation N, § 87(2)(b) testified that she did not leave the house until she saw § 87(2)(b) grabbed by police officers. Specifically, she stated that § 87(2)(b) was pushed against the concrete wall by seven police officers, though she was unable to describe any of them. § 87(2)(b) did not provide any other details for this action [11 Board Review].

§ 87(2)(b) stated that § 87(2)(b) was standing between § 87(2)(b) and an officer when PO Barreiro told officers to arrest § 87(2)(b). § 87(2)(b) made no mention of § 87(2)(b) being pushed against a wall. § 87(2)(b) also failed to mention any force used against § 87(2)(b) [05 Board Review].

As noted above, § 87(2)(b) was not present at this point in the incident. § 87(2)(b) did not provide a statement to the investigation [see IAs, 06 Board Review].

PO Alexander testified that he assisted in the apprehension of a female matching § 87(2)(b)'s description after PO Barreiro said, "She's going to be under." According to PO Alexander, he assisted after observing that the female was resisting officers by flailing her arms. She was placed against a car by officers, but only her arms made contact with the car. PO Alexander denied that this female's head was ever pushed against a wall [16 Board Review].

PO Barreiro acknowledged that he instructed officers to arrest § 87(2)(b) but he did not remember which officers responded to this directive. He did not see any officer push § 87(2)(b)'s head against a wall [08 Board Review].

§ 87(2)(g) all of the other officers testified that they did not push a female civilian's head against a wall or see any other officer do so [09, 15-20 Board Review].

This portion of the incident was not captured on any of the videos recorded by § 87(2)(b). As noted in allegation N, the second video captured § 87(2)(b) reacting to § 87(2)(b) being on the ground, but no one in the room mentions any force used against § 87(2)(b).

No civilian provided a clearer description than "uniformed white male" for the subject of this allegation. § 87(2)(b) stated that she suffered no injury as a result of this action, and her arrest photo confirmed this. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation P – Force: On August 8, 2015, PO Jose Tabora struck § 87(2)(b) s head against a vehicle.

Allegation Q – Force: On August 8, 2015, PO Jose Tabora used a chokehold against § 87(2)(b)

Allegation R – Force: On August 8, 2015, PO Jose Tabora restricted § 87(2)(b) s breathing.

Allegation S – Discourtesy: On August 8, 2015, PO Jose Tabora spoke discourteously to

§ 87(2)(b)

§ 87(2)(b) testified that she was led across the street by PO Tabora, who pushed her head against her own car. PO Tabora also allegedly used a chokehold against § 87(2)(b) by placing one hand on the front of her throat. According to § 87(2)(b) PO Tabora maintained this chokehold for about 45 seconds. She had difficulty breathing due to both PO Tabora’s chokehold and her own anxiety. As noted above, § 87(2)(b) stated that PO Tabora was still holding her throat when she heard screaming, which drew her attention and caused her to turn her head. § 87(2)(b) stated that she then observed § 87(2)(b) on the ground. At that point, PO Tabora allegedly told § 87(2)(b) to shut the fuck up and keep her head straight. § 87(2)(b) made no mention of injuries to her head or neck but stated that she suffered bruising to her right bicep. She also made no mention of any medical treatment following the incident [07 Board Review].

§ 87(2)(b) s arrest photo showed no apparent injuries [24 Board Review]. Her entry in the Command Log listed her condition as “apparently normal” and noted no injuries.

No other civilian corroborated the abovementioned allegations made by § 87(2)(b) [04-06, 11-12 Board Review].

PO Tabora testified that he remained by his RMP after placing § 87(2)(b) inside. He did so because § 87(2)(b) was inside yelling and cursing. PO Tabora denied using any of the force alleged by § 87(2)(b) and he did not see any officer do so. PO Tabora also denied telling § 87(2)(b) to shut the fuck up [09 Board Review].

All of the officers interviewed denied using or witnessing any officer use the force described above against § 87(2)(b). They also denied speaking discourteously to § 87(2)(b) or hearing another officer do so [08, 15-20 Board Review].

The video excerpts in allegations K, L, and M show that § 87(2)(b) was led into the street by PO Barreiro, not PO Tabora. § 87(2)(g) the video captured § 87(2)(b) not § 87(2)(b) in the custody of PO Tabora on the side of his RMP.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation T – Abuse of Authority: On August 9, 2015, PO Genaro Barreiro entered § 87(2)(b) in Staten Island.

Allegation U – Abuse of Authority: On August 9, 2015, Sgt. Joseph Delsante entered § 87(2)(b) in Staten Island.

§ 87(2)(b) testified that an officer helped her stand up after she was pushed to the ground. According to § 87(2)(b) that same officer allowed her to return to her house. She gave no indication that any officer attempted to stop her.

After the officers left with § 87(2)(b) and § 87(2)(b) § 87(2)(b) remained in her house with § 87(2)(b) and § 87(2)(b) who was § 87(2)(b)'s ex-husband and had just arrived. § 87(2)(b) called 911 and reported the incident to IAB. This call ended prior to the arrival of the officers [25 Board Review].

At about 12:20 a.m. on August 9, 2015, PO Tabora and three other officers arrived at § 87(2)(b)'s home. § 87(2)(b) did not remember if she or § 87(2)(b) opened the door. She was unable to provide any detail for how the officers entered her home. § 87(2)(b) told Sgt. Delsante what had transpired. After speaking with § 87(2)(b) Sgt. Delsante walked outside and down the steps which lead to the back yard, where he spoke with additional officers. After speaking in a huddle for less than five minutes, Sgt. Delsante and PO Barreiro came up the stairs and told § 87(2)(b) who was still in the kitchen and about two to three feet from the door, that she was under arrest. Sgt. Delsante and PO Barreiro then entered § 87(2)(b)'s kitchen and arrested her. She was charged with § 87(2)(b) [11 Board Review].

§ 87(2)(b) testified that Sgt. Delsante and PO Barreiro arrived after § 87(2)(b) placed the 911 call. Sgt. Delsante and PO Barreiro asked if they could come in, and § 87(2)(b) verbally granted permission for them to enter. Sgt. Delsante asked § 87(2)(b) who had pushed her, and she said that it was another officer, not Sgt. Delsante or PO Barreiro. After speaking with § 87(2)(b) the officers stepped outside and spoke with § 87(2)(b) and § 87(2)(b).

According to § 87(2)(b) Sgt. Delsante and PO Barreiro knocked on the door ten to twenty minutes later. § 87(2)(b) opened the door and stepped back because the officers were walking in. § 87(2)(b) stated that there was no conversation about whether the officers could come inside. Sgt. Delsante and PO Barreiro entered the kitchen without consent [12 Board Review].

In a phone statement, § 87(2)(b) revealed that he was standing outside with § 87(2)(b) when Sgt. Delsante and PO Barreiro entered § 87(2)(b)'s house. § 87(2)(b) believed that he had left the door ajar when he exited the house earlier, but none of the officers spoke to anyone about gaining consent to enter. § 87(2)(b) made no mention of a second entry [06 Board Review].

§ 87(2)(b) made no mention of the officers entering the house. § 87(2)(b) and § 87(2)(b) were not present for this portion of the incident [05-05, 07 Board Review].

PO Barreiro stated that he returned to the 121st Precinct stationhouse after the arrests of § 87(2)(b) and § 87(2)(b) at which time he informed Sgt. Todaro that there

was still one arrest outstanding at § 87(2)(b). At that time, PO Barreiro heard a radio run for a 10-34 (assault) at § 87(2)(b). PO Barreiro informed Sgt. Todaro that this was the same location as the earlier incident and stated that he wanted to see if the 911 caller was the same as the woman who fled into her house during the earlier part of the incident. Sgt. Todaro instructed PO Barreiro to speak with Sgt. Delsante.

PO Barreiro revealed that he asked Sgt. Delsante if he could go to § 87(2)(b) to see if § 87(2)(b) was injured. Sgt. Delsante and PO Barreiro left the stationhouse to go to § 87(2)(b). A UF61 was not prepared beforehand. Obtaining a warrant was not discussed.

When PO Barreiro and Sgt. Delsante arrived, they briefly spoke with § 87(2)(b) and § 87(2)(b). § 87(2)(b) stated that he had video of the incident but refused to show it to PO Barreiro. PO Barreiro and Sgt. Delsante then entered § 87(2)(b). According to PO Barreiro, the back door was already open and EMTs were inside with § 87(2)(b) who was seated at the kitchen table. PO Barreiro did not remember if there were any other officers inside when he entered. When asked if he or Sgt. Delsante requested permission to enter the home, PO Barreiro stated that he did not need permission to enter because it was a radio run involving EMS and the door was open. He then acknowledged that neither he nor Sgt. Delsante spoke with anyone about permission to enter the house at any point. Sgt. Delsante spoke with § 87(2)(b) and when he finished, he asked PO Barreiro what had happened. When PO Barreiro told Sgt. Delsante that he recognized § 87(2)(b) as the woman who had interfered with the earlier arrests, Sgt. Delsante told § 87(2)(b) that she was under arrest. PO Barreiro made no mention of a second entry [08 Board Review].

Sgt. Delsante also stated that he and PO Barreiro spoke with § 87(2)(b) and § 87(2)(b). § 87(2)(b) claimed to have video but refused to show it. He also acknowledged that he walked into § 87(2)(b) with PO Barreiro. Sgt. Delsante did not remember if he asked § 87(2)(b) for permission to enter her home, but he cited § 87(2)(b)'s request that he go in and speak with her as his reason for entering. Sgt. Delsante also stated that PO Anthony Ruggiero and his partner were inside the house before he entered. He did not know how PO Ruggiero or his partner gained entry, but he did not hear § 87(2)(b) complain of any officer's presence inside the house. Sgt. Delsante was in the house for approximately 15 minutes. He did not remember specifically if he stepped outside the house again after entering it, though he stated that he may have spoken with § 87(2)(b) again on the back porch or in the kitchen. Sgt. Delsante did not remember if any officers remained in the kitchen if he left to speak with § 87(2)(b). According to Sgt. Delsante, no one complained that Sgt. Delsante or any other officer had entered § 87(2)(b)'s home a second time without permission. § 87(2)(b) was arrested after PO Barreiro identified her and confirmed that she had interfered in the earlier arrests [22 Board Review].

PO Ruggiero testified that he and his partner, PO Echevarria, spoke with § 87(2)(b)'s family members outside of the house before Sgt. Delsante and an Anti-Crime unit arrived. PO Ruggiero did not enter the house, nor did PO Echevarria. According to PO Ruggiero, Sgt. Delsante arrived minutes later, as did PO Barreiro, and Sgt. Delsante may have entered § 87(2)(b). PO Ruggiero initially stated that he did not know if PO Barreiro entered the house, but he later revealed that PO Barreiro went into the house to get § 87(2)(b) because "it was his arrest." The arrest was ultimately assigned to PO Tabora, but PO Ruggiero did not appear to know this. PO Ruggiero then stated that he did not actually see PO Barreiro enter. He revealed that he saw "people" going in and out of the house but did not remember who they were. PO

Ruggiero did not remember if he saw officers huddle or meet before entering the house a second time, but he stated that he saw PO Barreiro and Sgt. Delsante talking on the rear steps of the house, just outside the kitchen, at some point [17 Board Review].

PO Echevarria testified that he and PO Ruggiero arrived in response to a radio run for a 10-24 (past assault). According to PO Echevarria, the door to the house was open when he arrived, and EMS was on scene. PO Echevarria denied that either he or PO Ruggiero entered the home at any point. Sgt. Delsante arrived a minute or two later and entered the home through the still open door with an unknown officer. PO Echevarria did not remember if either officer discussed their entry with anyone prior to going in. He also did not remember if Sgt. Delsante entered the home more than once [20 Board Review].

PO Michael Compton, who was patrolling Sectors A and B of the 121st Precinct on August 9, 2015, responded to § 87(2)(b)s 911 call, but he had no recollection of the events which took place during this portion of the incident [21 Board Review].

The fourth video provided by § 87(2)(b) opens with the sounds of footsteps, followed by § 87(2)(b) asking, “Which one of you guys is a sergeant?” No one responds to the questions, but § 87(2)(b) is then heard almost immediately beginning to tell the story of what happened earlier. Because it is shot in the dark outside, the video offers no clues about how the officers entered her home. The video does, however, indicate by the proximity of voices that § 87(2)(b) and PO Barreiro, whose voice is identified by his Spanish accent, came closer to the camera after speaking indoors for a couple of minutes. The video ends before the arrest of § 87(2)(b) is discussed, § 87(2)(g)



2016-02-05_19-42-58.mp4

Only § 87(2)(b) and Sgt. Delsante testified that explicit consent was given for the officers' first entry. § 87(2)(b) had no memory of how the officers entered her home. PO Barreiro testified that no consent was sought at any point, because such consent would have been unnecessary based on the nature of the radio run. § 87(2)(g)

§ 87(2)(g)

Squad: 1

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date